SIMULATED FILING FOR A CLASS PROJECT (Docket Clock demo) | Index No. 158204/2026 | Doc No. 9 | NOT FILED IN ANY COURT

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ROSA DELGADO, individually and on behalf of all others similarly situated,

Plaintiff,

- against -

RIVERSIDE TOWER MANAGEMENT LLC,

Defendant.

Index No. 158204/2026

NOTICE OF MOTION TO DISMISS
(Motion Sequence No. 001)

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PLEASE TAKE NOTICE that, upon the annexed affirmation of Calvin Pell (fictional), dated September 14, 2026, the exhibits thereto, and the accompanying memorandum of law, Defendant Riverside Tower Management LLC will move this Court at the Motion Submission Part, Room 130, 60 Centre Street, New York, New York, on **October 2, 2026** at 9:30 a.m., or as soon thereafter as counsel may be heard, for an order:

(a) dismissing the complaint pursuant to CPLR 3211(a)(1), on the ground that documentary evidence, namely the building's rent registration records, establishes a defense;

(b) dismissing the complaint pursuant to CPLR 3211(a)(7) for failure to state a cause of action; and

(c) granting such other and further relief as the Court deems just and proper.

PLEASE TAKE FURTHER NOTICE that, pursuant to CPLR 2214(b), answering papers, if any, are required to be served at least seven days before the return date.

Dated: New York, New York, September 14, 2026

BRANNOCK PELL LLP (fictional), Attorneys for Defendant

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